BEFORE THE PROCUREMENT REVIEW COMMITTEE

BALOCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY, QUETTA

PRC APPEAL NO. 472026

M/S Ultrasoft System
Building # 1, near Airport Main Gate. Airport Road, Quetta

...............Appellant

VERSUS

1. **Chairman Procurement Committee, Balochistan Special Development Initiatives (BSDI). Government of Balochistan**
2. **Chairman CRC, Balochistan Special Development Initiatives (BSDI). Government of Balochistan**
3. **CEO M/S. Elysian Systems Private Limited**

.... Respondents

Quorum

1. Mr. Habib Ur Rehman Jamot .... Chairman PRC
2. Mr. Mubashir Ali Khan (FCIPS) .... Member PRC
3. Engr. Junaid Shah .... Member PRC
4. Engr. Iftikhar Ahmed Mir............................. Technical Member PRC
5. Syed Muheebullah.......... ....Private Member PRC

DECISION

Dated: 10-03-2026

1/03

Mubashir Ali Khan (FCIPS) – Member PRC. This appeal, preferred under Rule 56 of the Balochistan Public Procurement Regulatory Rules, 2014, calls into question the validity of the technical disqualification of M/S Ultrasoft System in respect of Tender No. TSE-252612924192. The said tender was floated by the Balochistan Special Development Initiative (BSDI), Government of Balochistan, for the procurement of a customized Software titled "Project Monitoring & Tracking System" (PMTS).

A. INTRODUCTION

2. This appeal arises from the technical disqualification of the Appellant in the tender process for the "Project Monitoring & Tracking System (PMTS)" published by the Respondent No. 2.

11/03

3. The Appellant, a firm with over two decades of experience in Information Technology services in Balochistan, has challenged its disqualification on multiple grounds, including alleged non-compliance with evaluation criteria, unequal treatment of bidders and procedural irregularities. The Respondents have defended the evaluation, asserting strict adherence to the BPP Rules, 2014.
4. Having heard the parties and examined the complete procurement record, including the bidding documents, technical evaluation reports, CRC minutes, and written submissions, this Committee proceeds to render its determination.

B. BEIRF FACTS

The material facts, largely undisputed, are as follows:

5. The Respondent published Tender No. TSE-252612924192 for a "Project Monitoring & Tracking System (PMTS)." The procurement was conducted using national competitive bidding through single stage two envelope bidding procedure using the evaluation criteria of Quality-Cost-Based Selection (QCBS) with a 70% weightage for technical score and 30% for financial score.
6. Timeline:
   I. Technical Bid Opening: 20 January 2026
   II. Technical Evaluation Report Publication: 16 February 2026
   III. Financial Bid Opening: 16 February 2026
   IV. Procurement Committee Meeting & Evaluation Approval: 16 February 2026
7. Evaluation Outcome:
   I. M/s Elysian Systems (Pvt.) Ltd.: Technical Score 70/70 (Qualified)
   II. M/s Ultrasoft System (Appellant): Technical Score 37.17/70 (Disqualified)
   III. M/s Applause Digital (Pvt.) Ltd.: Technical Score 30.09/70 (Disqualified)
8. Aggrieved by its disqualification, the Appellant filed a grievance before the statutory Complaint Redressal Committee (CRC) under Rule 56 of the BPP Rules, 2014. The CRC convened its meeting on 23 February 2026 and issued its decision on 25 February 2026, upholding the Procurement Committee's evaluation.
9. Being dissatisfied with the CRC's decision, the Appellant has invoked the jurisdiction of this Committee.

C. SUMMARY OF CONTENTIONS

10. Appellant's Contentions

a) Procedural Unfairness in Presentation: The Appellant was given less than 24 hours' notice for the presentation evaluation factor 1.4.1. While an online/hybrid option was initially promised, it was later withdrawn.

b) Arbitrary Deduction of Marks: The Appellant asserts that its technical proposal was fully compliant and deserved 90/100 marks. It specifically contests deductions under the following heads:

- Project Manager Qualification: MS in Technology Management should be considered equivalent to the required MS in Software Engineering for a Project Manager role.
- Mobile App Developer (International): The submitted experience of 58 months should be rounded up to 60 months, or the 2-month shortfall should be condoned.
- International Project Experience (10 Marks): The Appellant implicitly argues that its experience should have been accepted.
- Methodology & Approach (25 Marks): The award of zero marks is unjustified and arbitrary. The Procuring Agency's claim that "we did not like your technology" is not a valid evaluation criterion. The same methodology when demonstrated in the presentation secured full marks (30/30). Being awarded 0/30 Marks despite describing the approach for fulfilling the stated requirements creates an inexplicable inconsistency.

c) Unequal Treatment: The Appellant challenges the eligibility of the Respondent No. 3, the successful bidder, M/S Elysian Systems, arguing that a company incorporated on 26 July 2023 cannot possibly meet the three-year turnover requirement of PKR 15,000,000. This, it shows a relaxation of criteria for the particular bidder, while strict standards were applied to the Appellant.

d) Lack of Reasoning: The CRC's minutes failed to provide detailed, clause-wise justification for the mark deductions, violating the principle of fairness & due process.

11. Respondents' Contention (No. 1 & 2)

a) The evaluation was conducted strictly in accordance with Rule 35(1) of the BPP Rules, 2014, which mandates that bids be evaluated solely against the criteria set forth in the bidding documents. No criteria were altered or applied discriminatorily.

b) The Appellant's disqualification was based on clear, quantifiable shortcomings:

- Project Manager Qualification: MS/PhD in Technology Management is not equivalent to MS/PhD in Software Engineering, and no substitution clause is present in the bidding documents.
- Mobile App Developer (International): 60 months was the criteria and 58 months Fail to meet the mandatory stipulated threshold.
- Mobile Developer (Local): The Appellant is 34 months short of the required level.
- International Project Experience: No Documentary evidence of 2 such projects were found attached.
- Methodology & Approach: TOR-aligned queries unsatisfactorily addressed and detailed technical deficiencies recorded by the procurement committee.

c) Financial Eligibility of Successful Bidder: The eligibility clause requiring "turnover of at least 15,000,000 PKR Amount in 3 Subsequent Previous Years" was interpreted as a cumulative financial capacity requirement, which is a permissible interpretation. The successful bidder, M/S Elysian Systems, provided the required document demonstrating the required threshold.

d) Self-Assessment is Irrelevant: The Appellant's self-assessed score of 90/100 has no evidentiary value. Marks are awarded by the duly constituted Procurement Committee based on documentary evidence in the submitted bid.

e) Presentation Claim is Baseless: The Appellant attended the presentation and was awarded full marks (30/30). Therefore, the grievance regarding the presentation process is moot and does not affect the final score.

f) CRC's Role: The CRC duly reviewed the grievance and upheld the evaluation. The detailed evaluation report, which is part of the record, provides the necessary justification for the technical scoring.

12. Submissions of Respondent No. 3 (M/S Elysian Systems)

Respondent No. 3 adopted the arguments of the Procuring Agency and submitted that its bid was compliant based on the documents provided and the evaluation criteria. It prayed for the dismissal of the appeal.

D. ISSUES FOR DETERMINATION

13. Based on the pleadings and arguments by the parties, the following issues arise for determination by this Committee:
    I. Whether the procurement committee's decision to award zero marks to the Appellant for (i) Project Manager Qualification, (ii) Mobile Application Developer (International) Experience, (iii) International Project Experience, and (iv) Methodology & Approach was arbitrary, irrational, or contrary to the criteria set forth in the bidding documents.
    II. Whether the evaluation committee correctly interpreted and uniformly applied the eligibility criteria, particularly the three-year turnover requirement, to all bidders, including the successful bidder, Respondent No. 3.
    III. Whether the evaluation criteria as set forth in the bidding documents were in accordance with the procurement Rules?
    IV. Whether the Complaint Redressal Committee (CRC) provided a reasoned decision and fulfilled its obligations under Rule 56 of the BPPRA Rules, 2014.
    V. Whether the Appellant was denied a fair opportunity to present its technical proposal, and if so, whether this vitiates the evaluation process.

E. FINDINGS OF THE COMMITTEE

This Committee has examined the available record, including the bidding documents, evaluation reports, minutes of the CRC and the oral and written submissions of the parties. Our analysis proceeds issue-wise.

Issue No. I: Validity of the Technical Mark Deductions

The core of this appeal lies in the technical marks awarded to the Appellant. It is a procurement law that bids must be evaluated strictly in accordance with the criteria stipulated in the bidding documents. The role of this quasi-judicial forum is not to reassess the technical bid, but to review the criteria itself and whether or not the evaluators applied the same rationally, fairly and without any discrimination. Applying this principle, we examine each contested parameter:

i. Project Manager Qualification (0/5 Marks) The bidding document explicitly required an "MS/PhD in Software Engineering." The Appellant submitted an "MS in Technology Management." The Appellant argues for equivalence. This Committee finds no merit in this argument. The bidding document did not contain an "equivalence" clause, nor did the Appellant provide for any such document establishing equivalence of both the Degrees.

ii. Mobile Application Developer – International Experience (0/5 Marks) The requirement was for a minimum of 60 months (5 years) of experience. The Appellant's submitted CV showed 58 months. Shortfall of 2 months is still a shortfall. The criterion was quantifiable and absolute. The evaluation committee had no discretion to "round up" the experience or condone the deficiency.

iii. International Project Experience (0/10 Marks) The bidding document required "documentary evidence" for two international projects. The Appellant failed to attach any work orders or completion certificates. The award of zero marks was the only legal outcome in absence of the mandatory supporting documents.

iv. Methodology & Approach (0/25 Marks) This parameter constitutes the most contested and decisive aspect of the appeal. The Appellant contends that the deduction of all 25 marks was arbitrary and unjustified, pointing to an apparent inconsistency, its presentation which the Appellant describes as a summary of its methodology was awarded full marks (30/30), while the detailed Methodology & Approach document, upon which the presentation was based, received not a single mark. The Appellant further argues that the Procuring Agency's informal explanation, paraphrased as "we did not like your technology," does not constitute a valid ground for evaluation under the bidding documents.

a. **The Respondent's Stated Grounds for Disqualification:** In defense of its decision to award zero marks, the Respondent has articulated the following deficiencies, which are drawn from the evaluation record, reply of the Respondent and were reiterated during the hearing:

- Non-Alignment with Terms of Reference (TOR) - The submitted methodology failed to demonstrate alignment with core TOR requirements (the 14 functional requirements listed in the datasheet). The solution was found to be generic and lacking the specific functionalities required for BSDI's operational environment.
- Lack of Technical Depth and Architectural Documentation - The proposal was found to be general and descriptive rather than technically in-depth. It lacked essential architectural documentation, including system architecture diagrams, process flow diagrams, data flow diagrams, and entity-relationship models.
- Non-Credible Agile/Scrum Implementation Plan - Although the Appellant referenced a Scrum-based Agile methodology, the committee found this claim unsupported by any demonstrable evidence, such as prior experience, defined sprint deliverables, or iteration-level planning.
- Functional Deficiencies in Proposed Modules - The evaluation identified functional gaps in critical modules, including Mobile Field Monitoring (no offline data capture mechanism) and Scalability (no horizontal scaling plan or performance optimization approach).
- The Respondent further argued that the Appellant has failed to understand a fundamental distinction that the Presentation (30 marks) and the Methodology & Approach (25 marks) are separate and independent evaluation parameters, serving different purposes. The award of full marks for presentation does not, and cannot, automatically translate to a satisfactory assessment of the approach and methodology. A bidder may present well while the underlying technical proposal remains fundamentally deficient.

b. **The Committee's Inquiry into the Evaluation of this factor 1.5.1:** Recognizing the significance of this issue, the Committee proceeded to examine the foundational question: *against what standard were the bids to be evaluated?* Since the discretionary parameters of Presentation and Methodology & Approach at S.No. 1.5.1 necessarily require alignment with the project's Terms of Reference (TOR), the

Committee inquired of the Respondent: ***"where are the said TORs stated in the bidding documents?"***

The Respondent admitted that the bidding documents contain no heading explicitly titled "Terms of Reference." However, the 14 functional requirements listed under the heading "Datasheet of the Assignment" constitute the TOR against which bids were evaluated. It was submitted that, to be awarded the 25 marks for Methodology & Approach, a bid must satisfactorily fulfil all 14 of these requirements to the satisfaction of the Procurement Committee.

c. **The Binary Nature of the Assessment:** The Committee then probed the logic of this assessment framework. It was asked: ***"In a matter of such subjective nature, how can the evaluation be so binary? How can any bid satisfy all subjective requirements to a level of perfection warranting 25 marks and conversely, how can a bid submitted by an eligible bidder, particularly one that secured 30 out of 30 marks in the presentation of the very same assignment fail to satisfy even a single requirement to the extent of deserving zero?"***

The Respondent's answer was clear, ***"because it is mandatory to fulfil all 14 requirements, the marks could only be awarded in their entirety, 25 marks for full compliance or zero marks for any deficiency. There was no middle ground, no provision for partial compliance and no mechanism to award marks proportionately."***

11/3

d. **The Appellant's Assertion:** At this point, the controversy intensified and the Appellant emphatically maintained that its bid does fulfil all 14 stated requirements and that the award of zero marks is therefore unjust in light of the mechanism just defined by the Respondent. The Respondent countered that the Appellant's proposal was found lacking on the specific grounds enumerated above in Para "a"

11/03

To resolve this impasse the Committee directed the Respondent to log in to the ePPS and demonstrate the shortfall areas of the Appellant's bid as they appear quoted as the e-bid submission against the Methodology & Approach factor (Requirement 1.5.1).

e. **Initial Resistance and the Committee's Authority:** The Respondent initially hesitated, expressing an understanding that some rule prevented the disclosure of bid contents to the Committee. This objection was immediately overruled. The Chairman firmly reminded the Respondent that this Committee, in exercising its quasi-judicial functions, holds the powers of a court in relation to the proceedings before it. The Respondent was instructed that resistance to a lawful direction of the Committee would not be allowed.

The Respondent, having been appropriately reprimanded, complied with the direction and proceeded to display the contents of the Appellant's bid as submitted under the said evaluation factor.

f. **What the Display Revealed:**

- The Appellant's bid did contain responses against each of the 14 functional requirements. ***The Appellant had, in fact, submitted textual responses addressing each requirement individually. The controversy was not of omission but of substance and sufficiency.***
- ***The Respondent contended that while responses were present, the content of those responses was not as per the requirement meaning, in the evaluators' judgment, the Appellant's explanations did not adequately demonstrate compliance with the functional requirements. The Appellant, for its part, maintained that its responses were sufficient and that the evaluators' dissatisfaction was subjective and unreasoned.***

g. **The Comparative Examination of the Two Bids:** Having heard the Respondent's justification for awarding zero marks to the Appellant, the Committee turned its attention to the perfect score of 25/25 awarded to the successful bidder, the Respondent No. 3and inquired the Respondent:

"Was there no single room for improvement in the bid of Respondent No. 3? Did its methodology achieve such perfection that no mark could reasonably be deducted?"

The Respondent affirmed this position without hesitation, stating that the successful bidder had complied with 100% of the stated requirements in a satisfactory manner and was therefore rightly awarded full marks.

The Committee then asked that the successful bidder's submission under the Methodology & Approach factor (Requirement 1.5.1) be displayed for comparison, ***to understand what "100% satisfactory compliance" looked like in practice."***

h. **Mandatory Requirement Found Missing:** At the very outset of this demonstration, an astonishing revelation emerged. Prima facie, the "training & Support" component stated as Unit 13 as one of the 14 mandatory functional requirements was totally missing from the successful bidder's Methodology & Approach submission.

   The Committee immediately drew the Respondent's attention to this glaring omission. The Respondent, visibly unsettled, struggled to justify the absence subsequently, referred to another document from the successful bidder's bid, claiming as fulfillment of Requirement 13. Upon examination, however, this justification collapsed. The document being referred to was not part of the Methodology & Approach attachment against Requirement 1.5.1. It was, instead, a document attached to the Presentation parameter Requirement 1.4.1. a separate factor with its own evaluation and marks.

i. **Committee's Conclusion of the Approach and Methodology evaluation (25 Marks):**

   a) The Binary Evaluation Criteria Exposed as Unworkable: The Respondent's own working demonstrates why a binary, all-or-nothing scoring system for subjective parameters is unworkable.

   b) Double Standard Adopted: The Appellant, who placed its responses through their 111 pages e-Bid Annexure was penalized for the alleged insufficiency of those responses against Requirement 1.5.1. The successful bidder, who placed no response in their 19 pages e-Bid Annexure was given full marks against Requirement 1.5.1. This is not equal treatment. Under the Respondent's own standard, all 14 requirements must be satisfactorily fulfilled to earn 25 marks, the successful bidder did not respond to the requirement of training, therefore it should have received zero. It did not. It received 25. The only logical conclusion is that the standard was applied to the Appellant but not to the successful bidder.

c) The Attempted Misrepresentation: The Respondent's attempt to portray a presentation attachment as a methodology attachment, when the omission was pointed out. This reflects very poorly on the honesty with which this matter has been attempted to be defended. A procuring agency that cannot acknowledge a clear deficiency in its preferred bidder's submission, and instead resorts to misdirection, further looses the Committee's confidence in the evaluation.

d) The Training Requirement Missing: The training component was one of 14 requirements. The successful bidder's Methodology & Approach document did not address it. This is not a matter of subjective judgment it is a matter of fact.

e) Distinction Between Presentation and Methodology is not the real issue: The Respondent view that Presentation and Methodology are separate parameters therefore the Appellant's presentation's full marks do not make up for the deficiency of methodology. The issue is that the successful bidder's methodology was objectively missing a mandatory requirement, yet it received full marks, while the Appellant, who at least attempted to address all requirements received none.

Finding on Issue No. I: The evaluation report contains technical reasoning in support of the marks awarded and it is not within the competence of this Committee to assess the merit of that reasoning. The supervisory jurisdiction of this committee extends only to the regularity of the process, not to a review of technical findings. However, the Respondent's grounds for not awarding any score in factor 1.5.1 to the Appellant were non-alignment with TOR, lack of technical depth, non-credible Agile plan, functional deficiencies. These may or may not have merit as a matter of technical debate. But what is evident after the comparative analysis of both e-bids is that the judgment was applied so inequitably and defended so misleadingly, that its results cannot be trusted. When the successful bidder's submission is shown to lack a mandatory requirement entirely and the Respondent nonetheless defends its perfect score, the entire evaluation collapses under the weight of its own inconsistency.

Issue No. II: Financial worthiness assessment of Respondent No. 3

The Appellant alleges unequal treatment, claiming that the Respondent No. 3 was incorporated in July 2023, could not meet the three-year turnover requirement. The relevant clause required "turn-over of at least 15,000,000 PKR Amount in 3 Subsequent Previous Years" The Procuring Agency interpreted this as a cumulative requirement (i.e., a total of PKR 15 million over three years) rather than an annual requirement (PKR 15 million per year for three years). It does not explicitly state "per year" or "each year." This interpretation was applied to all bidders uniformly.

Finding on Issue No. II: The Appellant failed to establish that the financial eligibility was assessed in disregard of the stated criteria or were applied in a discriminatory manner. Moreover, this ground is inconsequential to the Appellant's disqualification, which is based on its own failure to meet the minimum threshold score of 70%.

Issue No. III: The Evaluation Criteria and whether the same were crafted to serve any mala fide purpose:

The criteria on which bids are assessed is the foundation upon which the entire procurement rests. If that foundation is flawed, no structure built upon it can stand.

a. **Structure of the Evaluation Criteria:**

- Total of 100 marks for Technical evaluation
- 70 & 30% weightage for quality & cost marks respectively
- Minimum 70 marks required for responsiveness
- 45/100 marks are to be awarded on the basis of objective / documentary criteria (Certifications, HR, Experience etc.)

- 55/100 marks are to be marked on evaluators assessment / discretion without objectively defining the exact criteria (Presentation and Approach & Methodology)

- 55% discretionary marks are awarded on binary basis, i.e. either 0 or full marks (no other option)

b. **Issues with the Evaluation Criteria:** This Committee identifies four interrelated aspects of these criteria that undermine the integrity of the procurement process.

   i. **Insufficiency of Objective Compliance for being responsiveness:** Objective compliance is insufficient for technical qualification. No matter how strong a bidder's profile, its fate rests entirely upon the evaluators' subjective assessment of its presentation and methodology. A bidder that secures all 45 objective (Documented factors) marks remains 25 marks short of responsiveness. Such a bidder, despite possessing the required certifications, HR and experience cannot achieve technical responsiveness without securing at least full marks in either of the discretionary parameters.

   ii. **The Binary Structure of Discretionary Parameters: (55 Marks)** The discretionary parameters Presentation (30 marks) and Methodology & Approach (25 marks) are structured as binary, all-or-nothing propositions. An evaluator has only two options: award zero marks or award full marks. This binary structure is at odds with the nature of subjective assessment, parameters such as "quality of presentation" and "soundness of methodology" are not binary conditions like the presence or absence of a document. A methodology may demonstrate strength in some areas while showing weakness in others. A presentation may convey clarity of thought while lacking technical depth. A binary scale forces the evaluator into an unjust choice: either treat a partially satisfactory submission as a complete failure (0 marks) or overlook its deficiencies entirely by awarding full marks. Neither option permits a proportionate or accurate reflection of the bidder's true standing.

   iii. **Absence of TORs in the bidding document:** The discretionary parameters of Presentation (30 marks) and Methodology & Approach (25 marks) together account for a majority of the technical score i.e. 55 marks.

11/3

11/03

These parameters require the bidder to demonstrate its understanding of the project's Terms of Reference (TOR) and to formulate an implementation plan and execution framework aligned therewith. However, upon examination of the bidding documents, this Committee finds that the TOR the very foundation upon which such a presentation and methodology must be built are absent. A bidder searching for the TOR would find none. When confronted with this omission, the Respondent pointed to the column titled "Requirements" under the heading "Datasheet of the Assignment" and asserted that this constituted the TOR for evaluation purposes.

iv. **This Committee rejects this assertion.** A column of requirements buried within a data sheet, without being expressly designated as the Terms of Reference or clearly communicated to bidders as the basis of most heavily weighted evaluation does not satisfy the fundamental requirement of transparency in public procurement.

v. **The Concentration of Decisive Power in Subjective Discretion:** When the insufficiency of objective fulfilment is combined with the binary nature of discretionary evaluation factors, the result is an evaluation framework in which decisive power is concentrated entirely in the judgment of the evaluators. A bidder's fate rests upon two binary decisions: whether its presentation is deemed worthy of 30 marks or zero, and whether its methodology is deemed worthy of 25 marks or zero. There is no middle ground, no calibrated assessment, no mechanism for a bidder with partial compliance to receive partial credit.

c. **The Actual Outcomes:** The record reveals the following technical scores awarded to the three participating bidders:

- M/s Elysian Systems 100/100 Responsive
- M/s Ultrasoft System 55/100 Non-Responsive
- M/s Applause Digital 43/100 Non-Responsive

The successful bidder has been awarded a perfect technical score of 100/100. This signifies that, in the judgment of the Procurement Committee, its proposal was flawless in every respect. Its technical qualifications including presentation and methodology were so perfect that they merited the full 100 marks.

The Appellant scored 55 marks a deficit of 45 marks from perfection. The third bidder scored 43 marks a deficit of 57 marks from the total marks. These are not marginal shortfalls they are failures to meet the stipulated criteria, challenged by both the non-responsive bidders through their grievances on the technical evaluation. A perfect score in a procurement of this complexity is, in the experience of this Committee, extraordinary! Though not impossible, but it is extremely rare particularly when compared with the scores of the other two eligible bidders.

d. **Conformity with Procurement Rules:** The BPP Rules, 2014, do not categorically prohibit the inclusion of subjective criteria or binary scoring. However, the rules do emphasis fundamental principles of fairness and equal treatment. A criteria that renders objective compliance insufficient for qualification, concentrates decisive power in unguided discretion cannot be said to be aligned with the spirit of those principles.

Finding on Issue No. III: This Committee finds that the criteria are so designed as to undermine the principles of fairness and rational assessment which are the foundational pillars of public procurement. Hence, the criteria is found incapable of being relied upon for fair assessment of bidders. Accordingly, this Committee holds that the structure of the evaluation criteria and its application in this procurement are fundamentally flawed and have produced an outcome that cannot be relied upon.

Issue No. IV: Adequacy of the CRC's Decision: The Appellant contends that the CRC failed to provide clause-wise justification for upholding the marks deduction, rendering its decision unreasoned. Rule 56 of the BPPRA Rules, 2014, requires the CRC to examine grievances and provide a decision. In the instant case, it upheld the evaluation. The summarized reasons for marking are contained in the minutes of the CRC meeting, which has been made available to this Committee and the bidder and forms the basis of our analysis in Issue No. I.

Finding on Issue No. IV: While more detailed reasoning from the CRC would have been beneficial, the absence thereof does not invalidate the procurement decision.

Issue No. V: Denial of Fair Opportunity for Presentation: The record shows that the Appellant attended the presentation session and was awarded the full 30 marks for the presentation parameter. Any grievance regarding the notice period or mode of presentation is rendered ineffective by the fact that the Appellant received the maximum score for that component.

Finding on Issue No. V: The ground of denial of fair opportunity to present is untenable.

F. CONCLUSION

From the foregoing analysis and findings on the issues framed, the Committee arrives at the following overall conclusions:

i. The technical deductions made against the Appellant in respect of Project Manager Qualification, Mobile Application Developer (International) Experience, and International Project Experience were consistent with the explicit requirements of the bidding documents and cannot be interfered with by this Committee.

ii. The evaluation under the Methodology & Approach parameter (Requirement 1.5.1) suffers from serious irregularities. The comparative examination of the bids demonstrated that the evaluation standard was not applied uniformly.

iii. The Committee further concludes that the binary structure of the discretionary parameters, coupled with the absence of clearly defined Terms of Reference (TOR) and the concentration of decisive scoring power in unguided discretion, created a framework capable of producing inconsistent and unreliable results. In the present case, the manner in which the criteria were applied has undermined confidence in the integrity of the evaluation process.

iv. While this Committee does not substitute its own technical judgment for that of the evaluators, it is well within its jurisdiction to intervene where the evaluation process demonstrates clear inconsistency, unequal treatment, or lack of transparency. The record before the Committee establishes that the evaluation under Requirement 1.5.1 was conducted in a manner that does not satisfy the standards of fairness and equal treatment mandated under the BPPRA Rules, 2014.

v. Although certain technical deficiencies in the Appellant's bid may exist, the evaluation framework and its application in the present procurement are fundamentally unreliable, and the resulting technical scores cannot be sustained.

ORDER

For the foregoing reasons, this appeal is disposed of in the following terms:

1. The appeal is partially allowed.
2. The Technical Evaluation Report issued by the Procuring Agency in respect of Tender No. TSE-252612924192 for the procurement of the "Project Monitoring & Tracking System (PMTS)" is hereby set aside.
3. The Procuring Agency is directed to re-tender the procurement strictly in accordance with the principles of transparency, fairness, and equal treatment, ensuring that suitable evaluation framework is developed and applied uniformly.
4. The appeal stands disposed of in the above terms.

Habib Ur Rehman Jamot
Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA)
11/3/2026

11/03/26
Mubashir Ali Khan (FCIPS)
Member
Procurement Review Committee
BPPRA

Engr. Junaid Shah 11/03/26
Member
Procurement Review Committee
BPPRA

Engr. Iftikhar Ahmed Mir
11/3/2026
Member
Procurement Review Committee
BPPRA

Syed Muheebullah Advocate
11/03/26
Member
Procurement Review Committee
BPPRA